

Transaction Coordination Services Agreement

Between a transaction coordination team and a real estate agent it works for

Before you use this. This is a starting template, not legal advice. Rules differ by state, especially on three points: whether a transaction coordinator needs a real estate license, and whether an unlicensed coordinator may be paid only when a file closes; how independent contractors are classified (several states use a strict “ABC” test); and whether non-solicitation clauses can be enforced (California and some other states limit them heavily). Have a local real estate attorney review it and check your broker’s policies before anyone signs.

How to fill it in. Fill in the Key Terms, tick one box wherever there is a choice, and both sign at the end. The numbered sections refer back to the Key Terms by name, so they should not need editing.

Key Terms

Agreement date	
Team (legal business name)	
Team contact name, email and phone	
Agent name	
Agent license number and state	
Brokerage and managing broker	
Agent email and phone	
State whose law applies	
Services	☐ Contract to close coordination ☐ Listing coordination (paperwork, photos, going live) ☐ Deadline tracking and reminders ☐ Scheduling inspections, appraisal and walkthrough ☐ Updates to clients, lender and title or escrow ☐ Broker compliance file review and submission ☐ Closing coordination and final file hand-off ☐ Other (describe in the next line)
Other services	
Fee: listing side \$ per file	



Fee: buyer side

\$ per file

Fee: both sides of one transaction

\$ per file

Cancelled-File Fee

\$ for a file that does not close after work has started

When fees are due

- ☐ At closing, paid through the settlement statement
- ☐ Within the number of days written in the next line, after the Team invoices

Invoice due (if chosen)

days after invoice

Primary Coordinator

name and email

Business Hours

e.g. Mon-Fri 9am-5pm local time

Response Time

hours to reply during Business Hours

Non-Hire Period

months after this agreement ends (12 is common)

Placement Fee

\$, optional; leave blank if not offered

Notice Period

days of written notice to end the agreement (30 is common)

Terms

1. Purpose

The Agent sends transaction files to the Team, and the Team coordinates them from contract to close. The Team supports the Agent's work. It does not replace the Agent's duties to their clients or their broker.

2. Services

For each file the Agent sends, the Team provides the Services ticked in the Key Terms. Anything else is agreed in writing, file by file or as an update to this agreement.

3. Staffing

The Primary Coordinator is the Agent's main contact. The Team may assign work to other members of its team, including independent coordinators, as long as each is bound in writing by confidentiality terms at least as protective as Section 8. The Team stays responsible for their work. The Agent may ask for a different coordinator at any time, and the Team will make a reasonable effort to arrange one.

4. Excluded services

The Team does not: perform any activity that requires a real estate license, unless the coordinator is licensed in that state and permitted by the Agent's broker; give legal, tax or lending advice; negotiate terms; hold or move earnest money or any other client funds; sign any document on someone else's behalf; or send, confirm or change wiring instructions.



5. Agent responsibilities

The Agent sends the fully signed contract and all contacts within 1 business day of the contract being accepted; tells the Team promptly about amendments, extensions and terminations; reviews the key dates the Team sends at the start of each file; and introduces the Team to the clients and other parties as the Agent's coordinator.

The Agent remains responsible for all licensed activity, advice to clients, and compliance with their broker's supervision.

6. Fees

The Agent pays the fee in the Key Terms for each file, when it is due under the option chosen there. The Cancelled-File Fee applies when a file does not close after the Team has started work on it. If a fee is more than 30 days late, the Team may pause new files until it is paid. Open files are never paused.

The Team gives at least 30 days' written notice of any change to fees, and a change applies only to files sent after the notice period.

7. Communication

The Team replies to the Agent, their clients and other parties within the Response Time during Business Hours, and keeps a way for the Agent to reach it outside Business Hours for anything that can't wait. The Team tells the Agent right away when a deadline is at risk.

8. Client information and files

Both sides keep client information confidential and use it only for the transaction. The Team keeps it in secure systems, uses strong, unique passwords and two-factor sign-in where available, follows the broker's data policies, and tells the Agent within 24 hours of any suspected breach or wire-fraud attempt.

Transaction files belong to the Agent and their broker. When this agreement ends, the Team delivers complete copies of every file and then deletes client information it no longer needs, except where the law requires it to keep records. This section continues after the agreement ends.

9. Liability

The Team works with care and reasonable skill. The Agent, with their broker, keeps final responsibility for checking dates and documents before relying on them. Each side is responsible for its own actions and covers claims brought by others that result from its own negligence or breach of this agreement.

Neither side is liable to the other for more than the fees for the file involved, except for gross negligence, intentional misconduct, or a breach of Section 8.

10. Non-solicitation

While this agreement is in place, and for the Non-Hire Period after it ends, the Agent will not hire, directly or through another company, any coordinator who worked on the Agent's files through the Team, unless the Team agrees in writing or the Agent pays the Placement Fee (if one is set in the Key Terms). A general job posting that is not aimed at the Team's coordinators is not covered.

11. Termination

Either side may end this agreement for any reason by giving written notice (email counts) of at least the Notice Period, or immediately for a serious breach. Open files are finished under this agreement unless the Agent asks for them to be handed off, in which case the Team delivers complete notes and documents within 2 business days. The Agent pays for work done. Sections 8, 9, 10 and 12 continue after this agreement ends.

12. General

This agreement is governed by the law of the State in the Key Terms. It is the whole agreement between the two sides on this subject, and changes must be in writing and signed by both. If any part can't be enforced, the rest still applies and that part is enforced as far as the law allows.



Neither side may transfer this agreement without the other's written consent, except that the Team may transfer it to a business that takes over the Team. Notices go to the email addresses in the Key Terms. Electronic signatures and signed copies count as originals.

If a disagreement comes up, the two sides talk first, then try mediation in the State before going to court, except where urgent action is needed to protect client information.

Signatures

Each person signing confirms they have authority to sign for the party named.

Team

Signature

Printed name

Title

Date

Agent

Signature

Printed name

Title

Date

